

AYESHA A. MALIK, J.- The majority judgment dated 29.12.2022 is under review in CRP Nos.1-L and 2-L of 2023, wherein I did not agree with the majority opinion in CPLA No.3437-L of 2022 (subject of CRP No.2-L of 2023) and have written my dissenting opinion whereas I also dismissed CRP No.1-L of 2023 in CP No.3436-L of 2022 along with the other Judges. For the purposes of CRP No.1-L of 2023, the same is dismissed, however, in CRP No.2-L of 2023, while I concur with Justice Ishtiaq Ibrahim, I am reiterating my opinion and reasons to allow CRP No.2-L of 2023.

2. The issue between the parties is whether the trial court was justified in striking out the defence of the Petitioner under Order XI Rule 21 CPC, based on the non-compliance with its direction in the order dated 20.10.2022 to file answers to the interrogatories.

3. Rule 21 of Order XI CPC is reproduced hereunder:

“21. Non-compliance with order for discovery. Where any party fails to comply with any order to answer interrogatories or for discovery or inspection of documents, he shall, if a plaintiff, be liable to have his suit dismissed for want of prosecution, and, if a defendant, to have his defence, if any, struck out, and to be placed in the same position as if he had not defended, and the party interrogating or seeking discovery of inspection may apply to the Court for an order to that effect and an order may be made accordingly.”

The said Rule prescribes penal consequences where a party fails to comply with an order to answer interrogatories, or for discovery or inspection of documents. This provision has two requirements: firstly, an order for the discovery of documents or the filing of answers to interrogatories must be made, and secondly, such an order must not be complied with. The provisions of this Rule impose a penalty for non-compliance with a court order such that the suit can be dismissed if it is the plaintiff or the defence can be struck out if it is the defendant. The consequence of non-compliance with an order of the Court directing for answers to the interrogatories, discovery or inspection is grave which is why the law is settled on this point that penal provisions should be strictly construed and used with caution where circumstances mandate the same (Messrs United Bank Limited v. Yousuf Haji Noor Muhammad Dhadhi (PLJ 1987 SC 636). What the Court is essentially looking for under Order XI Rule 21 CPC is a default on the part of the plaintiff or defendant to comply with its order

to file its answer to the interrogatories or for discovery, or for inspection of documents. The test to ascertain whether there has been a default in compliance with an order of the Court is to see whether such default was done willfully. In this respect in the case reported as M/s. Babar Sewing Machine Company v. Tirlok Nath Mahajan ((1978) 4 SCC 188) the court elaborates that an order under Order XI Rule 21 CPC ought not to be made unless the court is satisfied that the party was willfully withholding information by refusing to answer interrogatories. The act of being willful means that it is done deliberately and intentionally and cannot be something that is done by accident or inadvertently or for reasons beyond the control of the party. Essentially, it goes directly to the conduct of a person with reference to the order for filing the answers to interrogatories, or for discovery or inspection and the intent behind such conduct. The underlying consideration for the Court before invoking Rule 21 of Order XI CPC is to satisfy itself that non-compliance with its order was willful, deliberate and intentional, being contumacious. This Court in the case reported as Messrs United Bank Limited (*supra*) stated that the provisions of Order XI Rule 21 CPC being penal in nature are to be strictly construed and the same can only be invoked and penalty imposed on a party only if such party has failed to file an affidavit in spite of an order passed by the court to that effect. Thus, to invoke Order XI Rule 21 CPC there must be an order for compliance and there must be willful default in its compliance.

4. In the case before us, for the purposes of order 24.11.2022 where the right of the Petitioner's defence was struck out, the facts of the case do not establish that the Petitioner committed willful default or intentionally and deliberately disobeyed an order of the Court. The facts of the case make this position apparent. The interrogatories were filed by the Petitioner and the Respondent on 02.02.2022 and 03.02.2022 respectively. On 11.02.2022 the Respondent sought time to amend his interrogatories which was allowed on 08.03.2022 and the Petitioner was directed to file his reply. The Petitioner sought three adjournments 09.04.2022, 20.04.2022 and 26.04.2022 and filed objections to the interrogatories on 09.05.2022. On 20.10.2022, the objections filed by the Petitioner against the interrogatories were dismissed and vide this order the Petitioner was directed to file his answers to the interrogatories. The

next date of hearing was 26.10.2022 on which date the Petitioner sought an adjournment which was granted by the Court. The next date of hearing was 08.11.2022 on which date again an oral request for adjournment was made on the ground that the Petitioner was injured on account of the incident of 03.11.2022 and was hospitalized. This fact is recorded in the order of 08.11.2022 as being a ground for the grant of adjournment, in the following term:

درخواست التوا پیش کی گئی ہے۔ جو اس طور منظور کی جاتی ہے کہ
interrogatories مدعا علیہ کو برائے ادخال جواب متعلقہ ایک مزید
موقع بتقرر 17-11-22 دیا جاتا ہے۔ سنایا گیا۔

The next date of hearing was fixed for 17.11.2022 when again a request for adjournment was made on the ground that the counsel for the Petitioner was not able to establish contact with the Petitioner due to his hospitalization and security concerns. Therefore, once again answers to the interrogatories could not be filed. This fact is also recorded in the order of 17.11.2022 in the following terms:

*“Learned counsel for the defendant has requested for one more adjournment to submit replies of the concerned interrogatories of the plaintiff’s side due to his non contact with the defendant. Learned counsel for the plaintiff has vehemently opposed the said request for adjournment with the submission that costs be imposed upon the defendant in case of adjournment. This court does not deem it proper to impose costs upon the defendant regarding adjournment sought by learned counsel for the defendant today. At request of learned counsel for the defendant one more adjournment is hereby granted to submit replies by the defendant regarding concerned interrogatories of the plaintiff’s side. File be put up on **24.11.2022** for submission of requisite replies by the defendant’s side regarding concerned interrogatories of the plaintiff in the form of one more opportunity. It is hereby clarified that in case of non submission of requisite replies by the defendant’s side regarding concerned interrogatories of the plaintiff’s side on the next date, the right of defence of the defendant shall be struck out.”*

It is noted that on this date Respondent’s counsel opposed the adjournment and requested that cost be imposed on account of the adjournment, however, the Court did not deem it proper to impose costs and instead gave the Petitioner an opportunity to submit his reply by 24.11.2022 with a warning that in case of failure, the right of defence of the Petitioner would be struck out. On 24.11.2022 once again the counsel appeared to state that he could not file the reply for the same reasons. On this date, an application for adjournment was

also filed in which they stated that they were going to assail the dismissal of the objection petition by way of filing a civil revision before the High Court. As per the arguments made the counsel stated that the hospitalization of the Petitioner, his injury and security issues were all informed orally to the court. The trial court, however, did not grant time and instead held that no lawful justification existed for a further grant of adjournment as a reasonable number of opportunities have been provided to the Petitioner to submit his answer to the interrogatories which he has failed to do. Consequently, the defence of the Petitioner was struck out in terms of Order XI Rule 21 CPC.

5. The basic question is to determine whether there was willful default on the part of the Petitioner whereby he deliberately and intentionally disobeyed the order of 20.10.2022 requiring him to file answers to the interrogatories. The answer here would be that this is not a case of willful default and that the failure on the part of the Petitioner to file his answers was due to circumstances beyond his control. The incident of 03.11.2022 was widely shown on national news channels and covered by the print media and was not denied by the Respondent. The Court itself accepted the reason of hospitalization and injury on 08.11.2022 as well as 17.11.2022 which is evident from its orders. Under the circumstances, there was sufficient cause for seeking the adjournment and the Court acted in haste by issuing a warning on 17.11.2022 and thereafter incorrectly recorded in its order of 24.11.2022 that there was no lawful justification for the grant of adjournments especially since it accepted these reasons on 08.11.2022 and 17.11.2022. Accordingly, there was sufficient ground to give the adjournment, and the default was not willful. Under these circumstances, it cannot be said that there was willful default and it also cannot be said that the conduct of the Petitioner was willfully contumacious, obstinate and disobedient and it also cannot be said that during the period from 08.11.2022 to 24.11.2022, the adjournments were sought with the intent to delay the proceedings.

6. Compliance with rules of procedure is fundamental to the pace and course of the litigation. When construing penal provisions, the exercise of judicial discretion by the Court has to be based on sound reasons that the circumstances justify. Judicial discretion in itself has inbuilt restraint which means that the Court cannot ignore

facts and circumstances prevailing at the time and where such error can be corrected or condoned for adequate reasons, the court can condone the non-compliance in furtherance of justice because there has been no deliberate attempt to ignore an order of the court (Asha Rani Gupta v. Vineet Kumar (2022 SCC OnLine SC 829)). The court should recognize that this is an exceptional step which should be invoked after due consideration of the facts (Miss Santosh Mehta v. Om Prakash and others (1980) 3 SCC 610). Further penal provisions do not mandate that they be applied in a mechanical way in every case rather it must be a thoughtful step, based on circumstances, that indicates willful failure, deliberate default and intentional non-performance. The Indian Supreme Court in the case reported as Bilmal Chand Jain v. Sri Gopal Agarwal ((1981) 3 SCC 486) has held that serious responsibility rests on the court where the power to strike out defence is concerned and that it will always be a matter for the judgment of the court to decide whether on the material before it, notwithstanding absence of a representation defence should or should not be struck out. What this means is that the provision merely vests power with the court to strike out the defence and does not oblige it to do so in every case. In the case of Miss Santosh Mahta (*supra*), the Indian Supreme Court concluded that the deliberate failure or willful default is necessary in order to invoke penal provisions and that the power to strike out defence should not be used where, despite default, there are good and adequate reasons. Order XI Rule 21 CPC is penal in nature and does not mandate a mechanical consequence for failure to comply with an order, rather it leaves it to the discretion of the court to decide if penal consequences should follow. This power for striking out of the defence under Order XI Rule 21 CPC can be exercised where the defaulting party fails to attend the hearing or is guilty of prolonged or inordinate and inexcusable delay which may cause substantial or serious prejudice to the opposite party; however, it is expected that before making an order for striking out of defence, the court must consider all the reasons given for the default which merits due consideration and assessment of facts. This is because the effect of striking out of the defence is that it will deprive the party of its ability to defend itself in the case which is a serious matter. In this case, the court had other alternatives, at its disposal, to regulate the pace of the proceedings as well as the conduct of the Petitioner, one of which is to impose costs which would not only serve as a form of

deterrence but would also lay the foundation for expeditious justice and promote a smart legal system which view was taken by this Court in its recent judgment rendered in the case reported as Qazi Naveed ul Islam v. District Judge (2023 SCP 32).

7. In the case before us, this power was exercised mechanically and more importantly, the order of 24.11.2022 itself does not state that it is based on the history of the case or the overall conduct of the Petitioner in the case. In the event that the trial court is of the opinion that the conduct of the party suggests that there is willful disobedience or deliberate attempt to delay the proceedings then it has to record its findings accordingly. The trial court focused on the dates subsequent to the order of 20.10.2022 and not on the overall conduct of the Petitioner, and reasoned that the adjournments were sought without cause and sufficient opportunities had been granted being the adjournments from 08.11.2022 to 24.11.2022. However, the order sheet does show that there were many adjournments, it also shows that oftentimes, the court had proceeded in a routine manner without much focus on the reasons for the adjournments.

8. In a case plagued by adjournments since 2017, the court must weigh the balance between a fair trial and the legitimate grounds for the latest request for adjournment. The courts are entrusted with the responsibility to dispense justice, for which they are under a duty to ensure a timely trial, which duty may have been overlooked in some of the previous instances of adjournment where requests were granted mechanically and without due consideration. However, the Petitioner's public shooting and injury at a political rally justified the grant of an adjournment for a reasonable time under the circumstances. The right to defence cannot be struck out without considering all relevant factors, and the court must weigh the balance between a fair trial and the circumstances at hand. The order sheet shows that the court proceeded in a mechanical manner with the case, and granted numerous adjournments without so much as imposing cost so as to discourage the same. No doubt that the courts are overburdened with work and judges are faced with the daunting task of handling a vast number of cases every day, nevertheless, it is the court's responsibility to manage each case before it diligently by applying the provisions of

the procedural law. The striking out of the Petitioner's right to defence, at this stage, while ignoring the legitimate factors in play, would be a gross injustice. The balancing act of justice must be upheld, and under these circumstances, the right to a fair defence must prevail.

9. Accordingly, as stated above, Civil Review Petition No.1-L of 2023 is dismissed and the Civil Review Petition No.2-L of 2023 is allowed. Consequently, the majority judgment 29.12.2022 is hereby set aside along with the judgments of the High Court and the trial court. The matter is remanded to the trial court to grant reasonable opportunity to the Petitioner file his reply to the interrogatories in compliance with the order of 20.10.2022 and thereafter to proceed with the case in accordance with law.

Judge

Judge

Approved for Reporting
Azmat Ali/*



ORDER OF THE COURT

By a majority of two-to-one (Muhammad Hashim Khan Kakar, J., dissenting) Civil Review Petition No.2-L of 2023 is allowed and the majority judgment dated 29.12.2022 is hereby set aside alongwith the judgments of the High Court and the Trial Court. The matter is remanded to the Trial Court with the direction to provide the Petitioner reasonable opportunity to file his reply to the interrogatories and proceed with the suit in accordance with law. Civil Review Petition No.1-L of 2023 is hereby dismissed.

Judge

Judge

Judge

Announced in open Court on 11.06.2026 at Islamabad
Approved for Reporting

Judge

THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

PRESENT:

MRS. JUSTICE AYESHA A. MALIK
MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE ISHTIAQ IBRAHIM

Civil Review Petition No. 1/L/2023 & 2/L/2023

(Against the judgment dated 29.12.2022, passed by the Hon'ble Supreme Court of Pakistan in CPLA No.3436-L of 2022 and CPLA No.3437-L of 2022)

Imran Ahmad Khan Niazi

...Petitioner(s)

VERSUS

Mian Muhammad Shahbaz Sharif

...Respondent(s)

For the Petitioner : Syed Ali Zafar, (ASC)
Mian Muhammad Kashif (ASC)
Mr. Muhammad Ozair Chughtai (AOR)

For the Respondent : Mr. Mustafa Ramday (ASC)
Mr. Muhammad Usman (AOR)

Assisted by : Ms. Tayyaba Munir, Law Clerk

Date of hearing : 08.04.2026

JUDGEMENT

ISHTIAQ IBRAHIM, J.- The Respondent, Mian Muhammad Shehbaz Sharif, filed a defamation suit against the Petitioner, Imran Ahmed Khan Niazi, seeking damages amounting to ten billion rupees in the wake of certain public allegations. During the course of the proceedings, the Petitioner failed to submit responses to interrogatories filed by the Respondent under Order XI of the CPC, leading the Trial Court to invoke the penal provisions of Rule 21 and strike out the Petitioner's right of defense on 24.11.2022. This decision was subsequently challenged in the High Court; however, the High Court dismissed the Petitioner's revision petitions, maintaining the Trial Court's order. As a result, petitions for leave to appeal were filed before this Court, which resulted in dismissal of the said petitions by a majority of 2-1.

2. Through the instant petitions, the petitioner seeks review of the majority judgment (authored by Syed Mansoor Ali Shah, J., and concurred in by Amin-ud-Din Khan, J.) dated 29 December 2022, (hereinafter referred to as the “majority judgment”), whereby the civil petitions preferred by the petitioner against the consolidated order of the Lahore High Court, dated 07.12.2022 were dismissed. In the dissent, the minority judgment (authored by Ayesha A. Malik, J.) concurred with the majority’s conclusion regarding CPLA No. 3436-L of 2022. However, the minority diverged sharply with respect to CPLA No. 2-L of 2022, opting to set aside the impugned judgments of both the Lahore High Court and the Trial Court, thereby remanding the case to Trial Court after restoration of the Petitioner’s right of defense. Both the majority and minority opinions stand reported as *Imran Ahmed Khan Niazi v. Mian Muhammad Shahbaz Sharif* (2023 SCMR 636).

3. Inasmuch as one of the two learned members of the Bench which rendered the majority judgment under review has since demitted office, while the other has, upon his elevation to the newly constituted Federal Constitutional Court, ceased to be part of this Court, the present Bench stands reconstituted with the inclusion of Muhammad Hashim Khan Kakar, J., and myself. We are acutely mindful of the fact that we exercise review jurisdiction and that a majority of us were not a part of the Bench rendering the original judgment. In such circumstances, judicial propriety demands the eschewal of any inclination to substitute independent preferences for those reflected in the judgment under review. Accordingly, the present review petitions have been approached with the utmost circumspection and objectivity, consciously adopting the vantage of the learned Judges who constituted the original majority, and thereafter subjecting the grounds urged for review to careful and dispassionate scrutiny. In this regard, the most judicious course to ensure such objectivity lies in first delineating the settled and well-entrenched principles governing the exercise of review jurisdiction, and thereafter examining the grounds raised by the petitioner strictly in the light of those principles.

4. Learned counsel for the petitioner, in support of the review petitions, placed reliance upon *Inter Quest Informatics Service v. Commissioner Income Tax* (2025 SCMR 257), *SCBAP v. Federation of Pakistan* (PLD 2024 SC 1199) and *Haji Musharraf Mahmood Khan v. Sardar Zada Zafar Abbas* (PLD 2023 SC 588), whereas learned counsel for the respondent, while opposing the same, referred to *Oil & Gas Regulatory Authority v. Gas & Oil Pakistan Ltd* (PLD 2025 SC 351), *District Education Officer v. Sonia Begum* (PLD 2025 SC 720) and *Commissioner IR Karachi v. MSC Switzerland Geneva* (2023 SCMR 1011). With the able assistance of learned counsel for the parties and drawing upon the wisdom of the Court, I now proceed to delineate the scope and grounds governing the exercise of review jurisdiction before advert to the merits of the case. Under the Article 188 Constitution of Pakistan, this Court is expressly vested with the power to review any of its judgments or orders. The relevant article is reproduced below:

Article 188. *The Supreme Court shall have power, subject to the provisions of any Act of Majlis-e-Shoora (Parliament) and of any rules made by the Supreme Court, to review any judgment pronounced or any order made by it.*

In light of this constitutional provision, the Supreme Court Rules, 1980 have been framed, where Part IV of Order XXVIII of the said Rules concerns the subject of Review. Rule 1 of Order XXVIII is reproduced below:

Subject to the law and the practice of the Court, the Court may review its judgement or order in a civil proceeding on ground similar to those mentioned in Order XLVII, Rule 1 of the Code and in a criminal proceeding on the ground of an error apparent on the face of the record.

A petition for review is neither a surrogate for an appeal nor a disguised revision before a superior forum; rather, it is a quintessential plea for the Court to revisit its own determination within the strict jurisdictional parameters prescribed by law. It does not permit a de novo rehearing or a recursive re-argument of the merits already adjudicated in the judgment under review. Every judicial pronouncement is cloaked in the presumption of solemnity, intended to serve as the final and conclusive

resolution of the lis between the parties. It is a well-entrenched principle that mere procedural irregularities, which do not fundamentally alter the scales of justice, lack the requisite gravity to disturb a judgment in review. However, where an anomaly or ambiguity emerges that is so profound as to pervert the course of justice, this Court's review jurisdiction is rightfully invoked to purge the record of such an infirmity. Such an error must be found floating conspicuously on the surface of the record, patent to the eye without the need for investigative scrutiny.

5. It is a settled canon of jurisprudence that an error apparent on the face of the record, whether of fact or law, must be self-evident requiring no meticulous search or laborious analysis to be uncovered. An error that necessitates an intricate process of reasoning, or one where a reasonable divergence of opinion may exist, falls outside this narrow ambit. However, the scope of an 'error apparent' undeniably extends to those instances where a judgment proceeds upon an erroneous assumption of material facts, or where the Court has overlooked a fundamental question of law or a pivotal aspect of the record. Should such an oversight, if properly noticed, have a direct and decisive bearing on the finality of the Court's conclusions, the judgment remains inherently fragile and amenable to the corrective power of review. The extraordinary relief of review is granted not to facilitate a secondary audience or a redundant re-hearing, but to extirpate at the threshold an otherwise irreversible injustice. Where the Court has arrived at a conscious and deliberate determination on a point of law or fact, the remedy of review remains incompetent. The sanctuary of review is reserved strictly for the rectification of patent errors, ensuring that the finality of a judgment does not become a shield for injustice.

6. Since the facts of the case stand exhaustively discussed in the judgment under review and are duly reported, I do not deem it necessary to reiterate the same in extenso. For the purposes of the present determination, I shall confine myself to those facts which bear directly upon the controversy at hand. However, before adverting to the merits and the submissions advanced by the learned counsel, it would be apposite to set out, for the sake of clarity, a concise chronological

summary of the material events, along with their respective dates that reflects a procedural history of the case.

07.07.2017	Suit for recovery of damages on account of defamation filed by the respondent against the petitioner.
09.09.2017	Petitioner entered appearance before the trial Court.
25.09.2017 & 09.10.2017	Case fixed for filing of written statement; the same was not filed on either date
09.10.2017 onwards	Despite lapse of statutory period, time was granted; no effective direction for filing written statement persisted till 26.04.2021.
04.05.2019	Petitioner withdrew application under Order VII Rule 10 CPC.
24.04.2021	Arguments heard on petitioner's application under Order XI Rule 16 CPC.
26.04.2021	Application under Order XI Rule 16 CPC dismissed; directions also issued for filing written statement.
17.05.2021, 31.05.2021, 05.06.2021, 16.06.2021, 26.06.2021, 29.06.2021, 06.07.2021, 16.07.2021	Repeated directions issued for filing written statement; "last and final opportunities" granted on some dates.
27.07.2021	Written statement finally filed by the petitioner after delay of approximately four years.
22.09.2021	Respondent's pending applications disposed of; objection regarding territorial jurisdiction deferred for evidence
06.10.2021 – 16.11.2021	Proceedings conducted in case management phase.
16.11.2021 – 18.12.2021	Proceedings for submission of Form No.13 and examination under Order X CPC.
18.12.2021	Case fixed for discovery and inspection under Order XI CPC.
05.01.2022	Trial Court directed parties to file interrogatories
02.02.2022	Respondent filed interrogatories.

03.02.2022	Petitioner filed interrogatories
11.02.2022	Respondent sought permission to amend interrogatories.
08.03.2022	Amended interrogatories filed by respondent; petitioner directed to submit replies
16.03.2022	Respondent filed answers to petitioner's interrogatories; petitioner sought time.
26.03.2022	Petitioner failed to submit answers; matter adjourned.
09.04.2022, 20.04.2022, 26.04.2022	Adjournments sought by petitioner for filing replies to interrogatories
09.05.2022	Petitioner filed objections to interrogatories.
20.10.2022	Objections dismissed; petitioner directed to submit answers to interrogatories.
26.10.2022	Further adjournments sought by petitioner for compliance
03.11.2022	Petitioner was shot at a political rally, underwent surgery and was hospitalized. The incident was widely reported all over media, both local and international.
08.11.2022	Counsel requests adjournment citing the shooting incident and hospitalization of the petitioner. The court accepted and granted adjournment.
17.11.2022	Counsel request further time, citing inability to contact Petitioner due to security and medical state. Court grants one Last Opportunity with a warning of Rule 21 penal action.
24.11.2022	Petitioner Counsel stated that reply is still impossible due to medical reasons of the petitioner. Trial Court refused adjournment and struck out petitioner's right of defense under Order XI Rule 21 CPC for non-compliance.
07.12.2022	Lahore High Court dismissed revision petitions against orders dated 20.10.2022 and 24.11.2022.
29.12.2022	Supreme Court heard the matter and passed short order dismissing petitions (majority view).

7. The Petitioner's challenge to the majority judgment is primarily anchored upon two pivotal legal infirmities which, it is contended,

constitute errors apparent on the face of the record and erroneous assumption of material fact, thereby necessitating a corrective intervention by this Court, first, being the illegitimacy of relying upon past conduct as a retrospective basis for a penal sanction; and second, the absence of a formal application as a mandatory jurisdictional prerequisite for the invocation of Order XI, Rule 21 of the CPC. These contentions are evaluated in detail below.

8. The learned counsel for the Petitioner vehemently contended that the majority judgment proceeds upon a fundamental misapplication of Order XI, Rule 21 CPC by erroneously importing past conduct to justify a penal sanction. It is submitted that the provisions of Rule 21 are only triggered by a willful and contumacious failure to comply with a specific order, and such a determination must be rooted in the conduct attending the default on that particular day, rather than a cumulative assessment of past lapses. The learned counsel emphasized that on 24.11.2022, the date on which the Trial Court struck out the right of defense, the Petitioner was suffering from critical injuries and remained hospitalized following a widely reported assassination attempt and shooting incident occurring just weeks prior. It is argued that such a failure to comply was neither willful nor deliberate, but was occasioned by a sufficient cause and circumstances entirely beyond the Petitioner's control. Counsel maintained that the Trial Court had itself recognized and accepted the validity of this medical incapacity in its previous orders dated 08.11.2022 and 17.11.2022, making the subsequent finding of 'contumacy' on 24.11.2022 a self-evident legal contradiction. Furthermore, the learned counsel contended that the majority judgment committed an error apparent on the face of the record by disregarding the immediate shooting incident and justifying the penalty through the lens of 'past conduct'. In support of this, the counsel relied upon the established principle that the Court's discretion must be exercised on the basis of all prevailing circumstances, with a preference for deciding cases on merits rather than knocking out parties on technicalities. The counsel argued that by allowing a history of adjournments, many of which were routine, to override a physical inability to comply on the relevant date, the majority has acted against the spirit of Rule 21.

9. The learned counsel for the Petitioner further contended that the majority judgment suffers from an error of law by validating a suo motu exercise of power under Order XI, Rule 21 of the CPC and made reference to *Mrs. Namita Dhar v. Dr. Amalendu Sen* [AIR 1977 Calcutta 187] and *Ranipet Chemicals & Engineering Co. Pvt. Ltd. v. Swastik Stainless Steel Stores* [AIR 1986 Calcutta 76]. It was argued with considerable vehemence that the scheme of the Code of Civil Procedure is meticulously structured; where the legislature intended to clothe the Court with the authority to act on its own motion, it has done so in express and unambiguous terms. A quintessential example is found in Order VIII, Rule 10 of the CPC, where the language, '*the Court may pronounce judgment against him, or make such order in relation to the suit as it thinks fit*', explicitly empowers the Court to proceed independently of an invitation by the parties. The provision is reproduced below:

Order VIII Rule 10. *Procedure when party fails to present written statement called for by Court. Where any party from whom a written statement is so required fails to present the same within the time fixed by Court, the Court may pronounce judgment against him, or make such order in relation to the suit as it thinks fit*

In stark contrast, the text of Order XI, Rule 21 is conditional and restrictive [reproduced below].

Order XI Rule 21. *Non-compliance with order for discovery. Where any party fails to comply with any order to answer interrogatories, or for discovery or inspection of documents, he shall, if a plaintiff, be liable to have his suit dismissed for want of prosecution, and, if a defendant, to have his defence, if any, struck out, and to be placed in the same position as if he had not defended, and the party interrogating or seeking discovery or inspection may apply to the Court for an order to that effect, and an order may be made accordingly.*

The counsel for Petitioner argued that the provision unequivocally mandates that '*the party interrogating or seeking discovery or inspection may apply to the Court for an order to that effect, and an order may be made accordingly.*' The use of this specific phrasing serves as a jurisdictional prerequisite, establishing that the Court's penal power is dormant until it is triggered by a formal application from the aggrieved party. Furthermore, the learned counsel for Petitioner took strong

exception to the majority's presumption regarding a potential 'oral application' by the Respondent. Learned Counsel argued that under the CPC, such an application must invariably be in writing and cannot be oral; moreover, the record of the Trial Court is conspicuously silent as to any such oral plea ever being made. The counsel concluded that as the Respondent had only sought the imposition of costs in the order dated 17.11.2022, and had not moved for the striking of the defense, the majority has committed an error apparent by validating a penalty that was never formally sought.

10. In opposition to the contentions raised by learned counsel for Petitioner, the learned counsel for the Respondent has vehemently defended the majority judgment, contending that it represents a correct application of the law in the face of persistent obstructionism. It is argued that the Petitioner has, since the very inception of the suit in 2017, employed calculated delaying tactics designed to frustrate the judicial process and impede the timely adjudication of the suit. The learned counsel submitted that while the penalty of striking out a defense is undoubtedly severe, it is a necessary instrument of the law to ensure the smoothness of proceedings and to uphold the Rule of Law. It is contended that a court cannot remain a silent spectator to the strategic recalcitrance of a litigant. The counsel maintained that the contumacious conduct of the Petitioner is well-established and transcends a single instance of default; rather, it is a continuous thread of willful non-compliance that permeates the entire history of the proceedings and thus the failure to submit responses to interrogatories was not an isolated lapse but a deliberate act of defiance, as evidenced by the Petitioner's habitual reliance on adjournments.

11. Regarding the application of Order XII Rule 21, the counsel for Respondent contended that the majority judgment correctly elucidated the suo motu authority of the Trial Court under the said provision of the CPC. It is submitted that the Trial Court is not rendered powerless in the absence of a written motion when a party repeatedly flouts judicial directions. Furthermore, the counsel argued that the persistent and 'repeated opposition' by the Respondent to the Petitioner's

adjournment requests is noted in the majority judgment as substantively amounting to an application for the invocation of the Court's penal powers. The Respondent's counsel concluded that the majority judgment, by viewing the Petitioner's default as willful and contumacious, has properly balanced the rights of the parties and should not be disturbed in the limited jurisdiction of review. To support his contentions, the learned counsel for the Respondent placed heavy reliance upon the number of judicial precedents including *Sindh Irrigation & Drainage Authority v. Province of Sindh* [2026 SCMR 190], *Muhammad Faisal v. Commissioner IR Lahore* [2025 SCMR 930], *Moon Enterpriser CNG Station v. SNGPL* [2020 SCMR 300], *Zahoor v. Election Tribunal* [2008 SCMR 322], *M/S. Chordia Automobiles v. S. Moosa and others* [AIR 2000 SC 1880], *Pakistan Industrial Promoter Ltd v. Monopoly Control Authority* [1990 CLC 1008] and *Babbar Sewing Machine Co. v. Tirlok Nath Mahajan* [AIR 1978 SC 1436].

12. I have dispassionately considered the contentions of the learned counsel for the parties, and have meticulously examined the precedents cited.

13. Order XI, Rule 21 of the CPC is not a routine tool of case management; it is the "death knell" of a party's defense. Its nature is strictly penal. As a matter of law, penal provisions must be construed strictly (*strictissimi juris*). The law does not favor the forfeiture of a substantive right to defense on a technicality unless the conduct of the party is proved to be contumacious, obstinate, and stubbornly defiant. When a court contemplates a measure that deprives a person of their fundamental right of defense, a right that is anchored in the constitutional guarantee of a fair trial under Article 10A, it must exhibit the utmost judicial restraint and proceed with absolute caution. It is observed that the Trial Court, in its orders dated 08.11.2022 and 17.11.2022, explicitly acknowledged and accepted the Petitioner's inability to respond to interrogatories due to a critical injury sustained in a widely reported shooting incident that happened on 03.11.2022. Once the Trial Court accepted the factum of the shooting incident on 08.11.2022, the element of "wilfulness" was legally extinguished.

However, on 24.11.2022, the Court abruptly shifted its stance, striking out the Petitioner's defense despite the continued existence of the same medical incapacity. When a party is hospitalized due to gunshot wounds, the failure to sign an affidavit or consult with counsel is a physical impossibility and not a contumacious act. The law does not compel a man to do what he cannot possibly perform (*Lex non cogit ad impossibilia*) thus a default occasioned by a physical catastrophe or force majeure that include circumstances entirely beyond a party's control, cannot be characterized as willful or contumacious as was in the case at hand and I am of the view that the Trial Court had acted mechanically in imposing this penalty upon the Petitioner and that the Majority judgment erred in analysis of this fact.

14. The Petitioner indeed sought numerous adjournments since the inception of the proceedings as rightly pointed by Majority judgment, however it is pertinent to note that the Trial Court saw fit to grant them without ever resorting to the lesser penalties available in the judicial quiver. Had the Court truly determined that the Petitioner was employing strategic delay tactics, it was empowered to ensure the expeditiousness of justice through the imposition of heavy costs or peremptory orders with realistic timeframes. Instead, the Court remained dormant in its disciplinary capacity for years, only to jump to the most extreme penalty on 24.11.2022, less than a month after the documented firing incident on 03.11.2022. Such an approach ignores the principle of proportionality as the judiciary's duty to ensure expeditious justice does not grant a license to commit summary injustice.

15. The penal mechanism of Rule 21 is designed to sanction those who exhibit a drastic and explicitly intentional defiance of the Court's commands. It is a tool to discipline the recalcitrant and not to punish the incapacitated. In this regard, it was elaborated by the court in case of *Messrs Babar Sewing Machine Company v. Tirlok Nath Mahajan* (AIR 1978 SC 1436) that an order striking out the defence under order XI, rule 21 of the Code should, therefore, not be made unless there has been obstinacy or contumacy on the part of the defendant or willful

attempt to disregard the order of the court and that the rule must be worked with caution, and may be made use of as a last resort. To apply such a penalty to a party who possesses a valid, documented, and previously accepted reason for non-compliance is to transform a procedural safeguard into an instrument of injustice. Furthermore, it must be emphasized that the invocation of Rule 21 cannot be predicated upon the past conduct of a party. The 'willfulness' of a default must be assessed strictly in relation to the specific order of the Court on the relevant date of hearing alone. By justifying the striking out of the defense through a retrospective tally of adjournments rather than a focused examination of the Petitioner's immediate and involuntary disability, the majority judgment has committed an error apparent on the face of the record. Equity and the spirit of the law lean towards a determination of cases on their merits thus the finality of a judgment must not be sought at the altar of a technical knockout when a legitimate 'sufficient cause' for delay exists.

16. The statutory architecture of Order XI, Rule 21 of the CPC provides a self-contained and mandatory mechanism for the invocation of its penal provisions. It is an established principle of statutory construction that when the law prescribes a particular mode for the performance of an act, that act must be performed in that manner or not at all. A literal and contextual reading of Rule 21 reveals a clear, tripartite sequence: first, the existence of a specific order for answer to interrogatories or discovery; second, a failure to comply with said order with penal consequences of suit dismissal, if plaintiff and right to defence struck off, if defendant; and third that the party interrogating or seeking discovery may apply to the Court for *an order to that effect*. It is only upon the fulfillment of these conditions that the Court is empowered to order invocation of penal consequences under Rule 21. The use of the phrase '*apply to the Court*' is a statutory command that vests the initiative in the hands of the aggrieved party. The legislature has deliberately avoided the use of language such as 'the Court may' which is found elsewhere in the Code when suo motu powers are intended. Therefore, the power to strike out a defense under this Rule is contingent and derivative, remaining dormant until a formal

application is preferred. In the present case, the record is void of any such application by the Respondent. While the majority judgment proceeded on the assumption that the Respondent's repeated opposition to adjournments could be treated as an 'oral application' for the striking out of the defense, I find myself unable to subscribe to such a view. For a penal action as grave as the deprivation of the right of defense, such informal assumptions are legally insufficient; in my understanding, a formal, written, and documented application is a mandatory prerequisite, following the principle that the more serious the request, the more rigorous the procedural compliance must be. By proceeding to strike out the defense in the absence of a statutory trigger, the Trial Court erred, and the majority judgment, by validating this overreach through an inference of suo motu empowerment, has ignored the clear letter of the law. This disregard for the procedural mechanism constitutes a patent error on the face of the record, as no other inference regarding suo motu authority can be legally drawn from the explicit wording of the provision.

17. In view of the foregoing, I am of the firm view that the majority judgment suffers from errors apparent on the face of the record, which have resulted in a manifest miscarriage of justice. The majority erred fundamentally in validating the invocation of Order XI, Rule 21 of the CPC based upon a retrospective evaluation of the Petitioner's past conduct, while ignoring the immediate and compelling medical incapacity resulting from the assassination attempt on 03.11.2022. As established, the penal provisions of the Code are not to be used as a scourge for past lapses when a 'sufficient cause' exists for the present default. Furthermore, the majority judgment proceeded upon a flawed legal premise by assuming a suo motu discretion of the Trial Court where none exists under the statutory scheme of Rule 21. The language of the said provision provides a specific mechanism that requires a formal application by the aggrieved party to trigger the Court's penal jurisdiction. By affirming the striking out of the Petitioner's right of defense in the absence of such an application based merely on an unsubstantiated presumption of an oral request, the majority has erred and such errors, being patent and floating conspicuously on the

surface of the record, necessitate corrective intervention in the exercise of review jurisdiction.

18. Based on the findings discussed above, review is allowed in CRP No. 2-L of 2023, and the majority judgment is hereby set aside along with the judgments of the learned High Court and the Trial Court. The matter is remanded back to the Trial Court with the direction to provide the Petitioner an opportunity to file his reply to the interrogatories, and to proceed with the suit in accordance with the law.

Conversely, regarding CRP No. 1-L of 2023, I find no legal infirmity that requires correction. Hence, the review is refused and the petition stands dismissed.

*I have appended
my additional note -*

Judge

*I have appended my
deed -*

Judge

Judge

Announced at Islamabad in Open Court on 11.06.2026.

Judge

Approved for Reporting

M.Siraj Afridi SPS/ Tayyaba Munir Law Clerk

Muhammad Hashim Khan Kakar, J. Through the petition referenced above, the petitioner seeks a review of the majority judgment authored by Mr. Justice Syed Mansoor Ali Shah and Mr. Justice Amin-uddin Khan dated 24.3.2024 ("majority judgment"). By the aforementioned judgment, Civil Appeals Nos. 333 and 334 filed by the petitioner with the Court's leave against the judgment of the Lahore High Court dated 14.03.2024, were dismissed, and the High Court's decision was upheld. In dissent, the minority judgment, authored by Mrs. Justice Ayesha A. Malik allowed the petition and set-aside the judgement of Lahore High Court.

2. It is important to note to that this case was originally heard by a bench of three members. Currently, only one member is available, and the reason for this is that Mr. Justice Amin-uddin Khan has been appointed as Chief Justice of the Federal Constitutional Court, and Justice Syed Monsoor Ali has resigned. As a result, they are not part of this Bench to consider the instant review petitions.

3. I am cognizant of the fact that I was not a member of the bench that rendered the judgment under review. Consequently, I am refraining from approaching this case from my own perspective, which may not necessarily be in accordance with the original decision-makers. However, I have made a concerted effort to approach these petitions with the uttermost objectivity by adopting the perspective of the honorable judges who delivered the judgment under review, treating it as my own, and then meticulously considering the grounds raised for its review.

4. The judgment under review provides a comprehensive examination of the facts of the case and the arguments presented by the learned counsel for the parties. As a result, they are not reproduced in this document to prevent duplication and superfluous repetition. However, they are succinctly summarized to the extent that is required for the resolution of the current review petitions.

5. The orders dated 20.10.2022 and 24.11.2022, which were passed by the trial court were the foundation of the entire episode whereby the

trial court had, by its order dated 20.10.2022, dismissed the objections of the petitioner for rejection of the interrogatories of the respondent and directed him to submit the answers to those interrogatories and by its order dated 24.11.2022, struck out the right of defence of the petitioner due to non-submission of the answers to the said interrogatories.

6. In an effort to overturn the District Judge's decision to deny the defense, the counsel submitted a petitions to the Lahore High Court. Nevertheless, the petitions were denied by the High Court on March 14, 2024. Following the petitioner's challenge to the Lahore High Court's ruling, a 3-member bench of this Court led by Syed Monsoor Ali Shah, dismissed the petitions and leave was refused. The decision was endorsed by two judges, while one judge opposed it. Consequently, these petitions for review are submitted.

7. There is no cavil to the proposition that this Court has been conferred the power to review its judgement under Article 188 of the Constitution of the Islamic Republic of Pakistan ("Constitution"), but this is subject to the provisions of any Act of Parliament and of the rules made by this Court. The said rules envisaged that, subject to the law and practice, the Supreme Court may review its judgment or order on the grounds similar to those mentioned in Order XLVII, Rule 1, of the Code of Civil Procedure, 1908 ("C.P.C"). The Order provides that a review may be sought where there is (1) discovery of new and important matter or evidence which, after exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason.

8. As a matter of fact, the power of review, as articulated in Article 188 of the Constitution and governed by the Rules made by this Court and the provisions of the C.P.C is not an open invitation to revisit judgements merely on the basis of dissatisfaction with the outcome. It is a limited jurisdiction, exercised with great caution and circumspection. The review jurisdiction does not allow re-hearing of the decided cases

more so when the Court has given conscious and deliberate decision on the point of law as well as of fact while disposing of the petition before it.

9. Considering the case in hand on the touchstone of the above mentioned principles, it is devoid of any merit, failed to disclose any error apparent on the face of the record, and did not meet the exacting standards prescribed under the Constitution, the rules of this court or the certain jurisprudence. On the contrary, the record reveals that it is a classic case of delay on the part of petitioner and helplessness of the trial court to conclude the lis within a reasonable time. Record reveals that the suit was instituted in the year 2017, whereas, the written statement was filed after a delay of about 4 years. Similarly, the interrogatories were made on 16.3.2022 and despite of availing 5/6 opportunities, the petitioner failed to respond the same. As per order sheet dated 26.4.2022, answers to the interrogatories was ready and the draft was only required to be signed by the senior counsel, however, on next date of hearing, instead of answering the interrogatories in compliance of Court directions and previous undertaking, once again objections were filed just to delay the proceedings. Such conduct on the part of petitioner was apparently willful disobedient.

For the above discussion, I see no justification to depart from the earlier view taken by this Court. Accordingly, these petitions are dismissed on merits

Judge

ISLAMABAD
12.03.2026
(Farrukh)

